

INVESTMENT RETRIEVERS, INC. v. GERARD DISU
Case No. FCM149129

Motion to Vacate or Set Aside Judgment

TENTATIVE RULING:

Defendant's motion to vacate the judgment in this collections matter is DENIED.

Defendant's motion is untimely. Defendant knew of this 2016 judgment no later than 2017 when his bank account was levied and in 2017 when he filed a claim of exemption which included his hand-written explanation why he should be exempt from collection.

ELSA FERNANDEZ v. FCA US LLC; DODGE CHRYLSER JEEP RAM OF
VACAVILLE
Case No. CU23-02659

Trial Management Conference

TENTATIVE RULING:

Parties to appear. Per the trial management conference orders, trial counsel shall appear. No remote appearances are authorized.

Plaintiff's Trial Management Conference Statement

It appears that Plaintiff's counsel is unaware of Local Rule 4.10 which identifies the mandatory requirements of a trial management conference statement. This rule is expressly referenced in the court's trial management conference order dated March 12, 2026. Plaintiff appears to rely on boiler-plate motions in limine filed in December 2025. No exhibit list, no witness list, no proposed jury instructions and no proposed jury verdict form is presented. The court questions whether Plaintiff is prepared for trial.

Plaintiff is ordered to show cause why Plaintiff should not be sanctioned up to \$1,000 and/or precluded from presenting any witness other than Plaintiff or any exhibit not identified by a timely filed exhibit list due to the failure to comply with this court's trial management order.

Plaintiff's Motions in Limine	
MIL 1: Exclude settlement discussions.	Department 8's trial management order expressly identifies this motion in limine as unnecessary. The court's standard trial orders exclude evidence of settlement discussions. (TMC Order 4.b.ii.)

MIL 2: Exclude evidence Defendant proposed arbitration.	GRANTED.
MIL 3: Exclude evidence or argument referring to attorney's fees or litigation costs.	GRANTED.
MIL 4: Exclude evidence relating to Plaintiff's application for financing and financial condition.	GRANTED IN PART. Plaintiff's application for financing is relevant as to the purchase price and interest Plaintiff paid and related directly to her claims for damages. Plaintiff's general financial circumstances are irrelevant.
MIL 5: Exclude evidence regarding attorney advertising.	GRANTED.
MIL 6: Exclude evidence and argument that timely revocation of acceptance was required.	DENIED. Note, motions in limine pertain to evidence not to argument.
MIL 7: Admit statements by Defendant's dealership as non-hearsay.	DENIED IN PART. Statements by employees of dealership are not admissible as party admissions absent a showing that a declarant was authorized to speak on behalf of the Defendant. Evidence of Plaintiff's communications to dealership personnel may be admitted for the non-hearsay purpose of establishing notice or knowledge imputable to Defendant where the dealership performed warranty repairs on Defendant's behalf.
MIL 8: Exclude evidence of CCP Section 998 offer.	GRANTED. See MIL 1.

Defendants Trial Management Conference Statement

The court is in receipt of Defendants' trial management conference statement filed June 10, 2026.

Defendant's Motions In Limine	
MIL 1: Exclude evidence relating to any loss of use, loss of wages and other consequential damages.	DENIED. Consequential damages are available as damages related to a fraud cause of action. (See <i>Bagdasarian v. Gragnon</i> (1948) 31 Cal.2d 744, 762-763.)
MIL 2: Exclude evidence of emotional distress.	DENIED. While the court anticipates garden variety at best, damages for the fraud cause of action may include economic and non-economic damages.

MIL 3: Exclude evidence relating to complaints unreported by Plaintiff to FCA.	DENIED.
MIL 4: Preclude reference to absence of corporate representative at trial.	GRANTED.
MIL 5: Exclude evidence not produced in discovery.	GRANTED.
MIL 6: Exclude evidence of other complaints, lawsuits, internet chat and other hearsay evidence at trial.	GRANTED. Evidence Code section 352.
MIL 7: Exclude evidence relating to vehicle complaints which were repaired after the first attempt.	DENIED.
MIL 8: Exclude repairs or customer concerns not covered by any applicable warranty.	DENIED.

The court reserves over jury instructions and jury verdict form.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002